HARBOUR POINTE AT ARVERNE BY THE SEA HOA V, INC.
THE DUNES
377 Oak Street, Suite 110
Garden City, NY 11530
Phone: (516) 745-0150 Fax: (516) 745-5607

TO AVOID A VIOLATION FINE, PLEASE CONTACT WEN MANAGEMENT WITHIN 3 DAYS

Sent Certified Mail/Return Receipt

June 08, 2023

Guo Hua Chen
6315 Ocean Avenue North
Arverne, NY 11692

Re: WARNING NOTICE TO CURE

Dear Guo Hua Chen,

In accordance with the underlying governing documents (referenced on Page 2) for the Arverne by the Sea Homeowners' Association V (the "HOA"), the Landscape and Architectural & Aesthetics Committee of the HOA makes recommendations to the full HOA Board on landscape and design issues. The Committee, which is appointed by the Board, confirms that homeowners in our Dunes Community adhere to the conditions set forth in our HOA guidelines.

We know that you would not intentionally violate our HOA guidelines. However, it has come to the attention of the Board that:

> ***Your backyard is unkept and must be properly maintained at all times. No more than 60% of the yard shall be covered in vegetation and no more than 4 feet high. Please see Gardening Section 4 (Item D) in the House Rules attached*** (photo enclosed).

At this time, we are asking that you please correct this immediately. Any violation which goes untended or has not been addressed within three (3) days will be referred to the Board of Directors.

Should the Board deem this a violation, they could impose monthly fines and other penalties until such violations are remedied including correcting the violation and charging your account for any costs incurred.

We appreciate your prompt attention to this matter and ask your cooperation in contacting:

Wen Management at 516-745-0150 or jdasilva@benjamindevco.com

We look forward to working together to resolve this violation.

Sincerely,

Wen Management for
The Landscape, Architectural, & Aesthetics Committee of the
Harbour Pointe at Arverne by the Sea Homeowners' Association V, Inc.

ARTICLE XI. USE OF PROPERTY:

(a) The Lot and any Home constructed thereon shall be maintained in good repair and overall appearance.

PLEASE NOTE:

If the Violation is not corrected, and a Fine is assessed to your account, such fine is to be considered as an additional common expense to the account of the violator and shall be treated as such regarding late penalties and a lien upon the Property, as elsewhere provided. If after imposition of a fine, the violation is not corrected or eliminated, the Board of Directors may assess additional fines of $100 each after serving written notice upon the violator as provided for above. If the violation results in loss of or damage to property classified as Common Area, the Board of Directors shall direct the Managing Agent or the Board, if no Managing Agent, to have said loss or damage repaired or replaced, and the actual cost of said repair or replacement shall be assessed to said violator as an additional assessment.